



Everise Concepts PLT
Business & Corporate Consultants

31-13-29 The CEO, Lebuh Nipah 7, 11900 Bayan Lepas, Penang, Malaysia. T/F :+604-6450015

10 March 2023

INSTINCT BROTHERS Co. Ltd.
West Side Gotanda 3F 6-2-7
Nishi-Gotanda, Shinagawa-ku
Tokyo 1410031 Japan

Attention : Mr. Tomoki Nagano, Representative Director

Dear Sirs,

LETTER OF ENGAGEMENT – CONSULTANCY FOR NASDAQ SPAC BUSINESS COMBINATION

This Letter of Agreement (this "Agreement") sets out the terms and scope of this engagement (the "Engagement" or "Project") on which we, Everise Concepts PLT ("Everise"), a limited liability partnership incorporated in Malaysia and having its office at 31-13-29 The CEO, Lebuh Nipah 7, 11900 Bayan Lepas, Penang, Malaysia is retained by you and/or your subsidiaries and associated companies (collectively, the "Company or Group") to assist you to identify and procure suitable SPAC company(ies) to merge with (the "Combination") and provide general consultancy services to you in connection to this corporate exercise.

1. Scope of Services

By accepting the terms contained in this Letter, you hereby appoint Everise on the terms set out herein to assist the Company in the Combination and to work on a transaction in which we have found a suitable SPAC candidate until the closing of the Combination.

This Engagement does not include the provision of Combination issue management services or Combination placement and underwriting services. We shall recommend to the Company the appointment of suitable professional firms eg solicitor, auditor, valuer investment banker in undertaking this Combination, if necessary.

1.1 Candidate Search/Investment

Everise shall introduce potential candidates to the Company from time to time for the Company's consideration.

1.2 Pre-Combination Consultancy

We will also provide consultancy services to advise and guide the Company in the Combination. We will assess each potential candidate and discuss our views on each candidate with you. We will usually look into, with respect to each potential candidate, the following

- (a) the shareholding structure;
- (b) the structure of the transaction;
- (c) the capital structure of the candidate;
- (d) the board composition and the management structure;
- (e) conflicts of interest and interested persons transactions;
- (f) appointment of suitable professionals such as the auditors, lawyers and valuers.
- (g) Combination time line; and
- (h) other matters concerning the Combination preparation including costs and negotiations

As consideration for the services to be provided by us under the Engagement as described above, you agree that, as remuneration, you shall pay to us :-

- i. a monthly retainer fee of US\$6,000.00 for a period of up to 8 months from the date of appointment hereof; and
- ii. upon the successful closing of a Combination, US\$100,000 or 2% shares of the merged SPAC company based on the de-spac valuation of the Company/ Group, whichever is the higher.

Everise understands and agrees that if the Company/Group does not ever successfully close a Combination, Everise is not entitled to any payment on item (ii) above.

1.3 The Engagement shall be deemed to be completed upon the Company/Group successfully closing a Combination.

1.4 The remuneration indicated above excludes all out-of-pocket expenses. Out-of-pocket expenses include but are not limited to traveling, accommodation and lodging expenses, printing cost and courier services expenses, amongst others and only in the course of carrying out the responsibilities under this Engagement. For any out-of-pocket expenses above US\$1,000.00, we will seek the prior approval of the Company. You shall pay or reimburse Everise for such out-of-pocket expenses within 14 days from the date of invoice.

1.5 Any value added tax, GST, duty or other levy imposed by law, withholding taxes in the home country of Everise or the Company, if any, or required to be paid in respect of any fees, commissions or other monies payable to or received or receivable by Everise shall be borne and paid by the Company.

2. Information

You shall provide Everise with all information concerning the business and affairs relevant to the Project for the provision of the services in connection with this mandate and all such further information as we may reasonably request. You will at all times keep Everise fully informed of all strategies, developments and discussions relevant to the Project and the services to be provided by Everise.

All confidential information which Everise receives from the Company will be held in strict confidence unless and until the Company consents in writing to the disclosure of that confidential information. Everise will take reasonable steps as it considers appropriate to ensure that confidential information provided by the Company for the purposes of the anticipated Combination is not used for other purposes which are contrary to the interests of the Company. All information furnished by Everise to the Company shall likewise be treated as confidential information and shall be held in strict confidence unless and until Everise consents in writing to the disclosure of that confidential information. By your receipt of this Agreement, you agree to treat the content of this Agreement as confidential information.

3. **Governing Jurisdiction**

This Agreement, which is the sole agreement and understanding between Everise in relation to the subject herein, shall be governed by and construed in accordance with the laws of Malaysia and both parties agree to submit to the non-exclusive jurisdiction of the Malaysian courts.

4. We trust you will find our terms acceptable. We are committed to working closely with you and providing our best services to help achieve your business objectives. Our offer of services under this Agreement is valid for a period of two weeks from the date hereof.

5. To authorize Everise to proceed with the exercise, please confirm our appointment by signing and returning the duplicate copy of this letter to us. Should you require further clarification or discussion, please do not hesitate to contact the undersigned.

Yours faithfully,



Lim Say Leong
Executive Partner
Everise Concepts PLT

+6012-4050015

sllim@everiseconcepts.com



**CONFIRMATION OF
APPOINTMENT**

We, INSTINCT BROTHERS Co. Ltd., hereby appoint Everise Concepts PLT (Co
Registration No. 201504001141) on the terms of this Letter of Engagement.

Authorised signatory for INSTINCT BROTHERS Co. Ltd.



Name : Tomoki Nagano

Designation : Representative Director, Charman

Date : 10 March 2023

“ Charting Your Success Roadmap Together”

Notes
